

22STCV03159 22STCV03159

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Case Number: 22STCV03159 Hearing Date: July 13, 2026 Dept: 514

A Plus Fabric,

Inc. v. Jung

22STCV03159

Demurrer of Elliot Tishbi and Jefferson Esguerra to First Amended

Cross-Complaint

Motion of Elliot Tishbi and Jefferson Esguerra to Strike

Demurrer of Dietz International Public Adjusters of California, Inc. to First

Amended Cross-Complaint

Motion of Dietz International Public Adjusters of California, Inc. to Strike

Motion of Seung Jae Baek aka Andrew Baek to Compel Elliot Tishbi to Provide Further

Responses to Requests for Production of Documents

Motion of Seung Jae Baek aka Andrew Baek to Compel Jefferson Esguerra to

Provide Further Responses to Requests for Production of Documents and Requests

for Admission

Motion of Seung Jae Baek aka Andrew Baek to Compel Dietz International Public

Adjusters of California, Inc. to Provide Verified Initial Responses to Requests

for Production of Documents

Tentative Ruling

The Court will call these matters.

Backg round

This case arises out of (among other things) alleged fraudulent transfers. The procedural history of the case is long and complicated, and the Court will not attempt to summarize here.

The original complaint in this action was filed on January 26, 2022. The operative complaint, which is the Third Amended Complaint (the “TAC”), was filed on December 29, 2025. In the TAC, A Plus Fabric, Inc. (“A Plus”), Q Textile, Inc. (“Q Textile”), and Elliot Tishbi (“Tishbi”) (collectively, “Plaintiffs”) assert a total of nine causes of action against a large number of defendants, including Seung Jae Baek aka Andrew Baek (“Baek”).

In a First Amended Cross-Complaint (the “FACC”), filed on March 27, 2026, Baek names as cross-defendants Tishbi, Jefferson Esguerra (“Esguerra”), Stephen J. Jung (“Jung”), Curious Apparel, Dietz International Public Adjusters of California, Inc. (“Dietz”), and Roes 1 through 20 and asserts causes of action for (1) breach of contract; (2) fraudulent misrepresentation; (3) negligence (violation of statutory duty under Penal Code section 550); (4) unjust enrichment; and (5) declaratory relief.

(Baek submitted a Second Amended Cross-Complaint on April 22, but the filing was rejected as Baek did not seek or obtain leave from the Court for the filing. The FACC is Baek’s operative cross-complaint.)

Currently before the Court and set for hearing on July 13, 2026, are seven matters (by the Court’s count).

First, on May 1, 2026, Cross-Defendants Tishbi and Esguerra filed a demurrer to the FACC. Baek filed an opposition on June 18. Tishbi and Esguerra filed a reply on June 24.

Second, on May 4, 2026, Cross-Defendants Tishbi

and Esguerra filed a motion to strike the punitive damages allegations in the FACC. Baek filed an opposition on June 18. Tishbi and Esguerra filed a reply on June 24.

Third, on May 14, 2026, Cross-Defendant Dietz filed a demurrer to the FACC. Baek filed an opposition on June 22. Dietz filed a reply on June 26.

Fourth, on May 15, 2026, Cross-Defendant Dietz filed a motion to strike certain allegations in the FACC. Baek filed an opposition on June 22. Dietz filed a reply on June 26.

Fifth, on June 8, 2026, Baek filed a motion for an order compelling Cross-Defendant Tishbi to serve further responses to Requests for Production (Set One) and to produce responsive documents. Baek also seeks sanctions. Tishbi filed an opposition, and his own request for sanctions, on June 18. Baek filed a reply on June 23 and a notice of supplemental authority on June 24.

Sixth, on June 10, 2026, Baek filed a motion for an order compelling Cross-Defendant Esguerra to serve further responses Requests for Production (Set One) and Requests for Admission (Set One). Baek also seeks sanctions. Esguerra filed an opposition, and his own request for sanctions, on June 24. Baek filed a reply on June 29.

Seventh, on June 15, 2026, Baek filed a motion for an order compelling Cross-Defendant Dietz to serve verified initial responses to Requests for Production (Set Two) and to produce responsive documents. Baek also seeks sanctions. No opposition or reply was filed.

Discussion

Demurrer and Motion to Strike
of Cross-Defendants Tishbi and Esguerra

The hearing on this demurrer and motion to strike is continued.

Before filing a demurrer or motion to strike, the

parties must “meet and confer in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a) & § 435.5, subd. (a).) This requirement has not been satisfied. (Kim Decl., ¶¶ 2-4.)

The Court ORDERS the parties to meet and confer as required by statute by no later than July 20, 2026.

The Court CONTINUES the hearing for at least 21 days, to a date convenient to counsel and the Court.

The Court ORDERS counsel for Tishbi and Esguerra to file a declaration regarding compliance with the statutory meet-and-confer requirement no later than seven days before the continued hearing date.

Demurrer and Motion to Strike
of Cross-Defendant Dietz

The Court will call this matter to determine whether the parties have met and conferred as required by statute. In connection with the demurrer, Dietz’s counsel states in a declaration that he “met and conferred” with Baek on April 30. (Brutzkus Demurrer Decl., ¶ 2.) In connection with the motion to strike, Dietz’s counsel states that he “electronically met and conferred” with Baek on April 30. (Brutzkus Motion to Strike Decl., ¶ 2.)

It is unclear to the Court whether counsel is referring to one conference or two and, regardless of whether it was one or two, whether the conference was in person, by phone, or by video conference (as required) or was only an exchange of emails or other electronic communications (which is not sufficient).

The Court will call this matter.

Baek’s Motion to Compel
Against Cross-Defendant Tishbi

The Court exercises its discretion to continue the hearing and to order the parties to meet and confer in person, by telephone, or by video conference. The

parties have exchanged emails but have not yet had a real-time discussion in an attempt to resolve, or at least narrow, their dispute. (Baek Decl., ¶¶ 4-10.)

Baek's Motion to Compel
Against Cross-Defendant Esguerra

The Court exercises its discretion to continue the hearing and to order the parties to meet and confer in person, by telephone, or by video conference. The parties have exchanged emails but have not yet had a real-time discussion in an attempt to resolve, or at least narrow, their dispute. (Baek Decl., ¶¶ 4-6.)

Baek's Motion to Compel
Against Cross-Defendant Dietz

This motion is denied without prejudice. No opposition has been filed, and moving party has not filed a proof of service showing service of the motion on counsel for Dietz (and all other parties or their counsel).